

4.	24CV2236	DEDRA COX VS. KENNETH L. BAZEMORE, JR
MOTION TO OF (1) TENTATIVE RULING ON MSJ; AND (2) DENIAL OF MOTION TO CONSOLIDATE CASE NOS. 24CV2236 & 24CV2106		

In order for an interested party to obtain reconsideration of a prior ruling or order, the applicant is required to file the motion within 10 days after service upon the party of the written notice of entry of the order and the application must be based upon new or different facts, circumstances or law. (Code of Civil Procedure, § 1008(a).)

“Section 1008's purpose is “ ‘to conserve judicial resources by constraining litigants who would endlessly bring the same motions over and over, or move for reconsideration of every adverse order and then appeal the denial of the motion to reconsider.’ ” (Sen. Com. on Judiciary, Analysis of Assem. Bill No. 1067 (2011–2012 Reg. Sess.), as amended Apr. 25, 2011, p. 4.) To state that purpose strongly, the Legislature made section 1008 expressly jurisdictional, as subdivision (e) explains: “This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.” (§ 1008, subd. (e).) To deter parties from filing noncompliant renewed applications, the Legislature provided that “[a] violation of this section may be punished as a contempt and with sanctions as allowed by Section 128.7.” (§ 1008, subd. (d).) We have recognized only one exception to section 1008's “jurisdiction[al]” (*id.*, subd. (e)) exclusivity. In *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1096–1097, 29 Cal.Rptr.3d 249, 112 P.3d 636 (*Le Francois*), we held the statute “do[es] not limit a court's ability to reconsider its previous interim orders on its own motion,” even while it “prohibit[s] a party from making renewed motions not based on new facts or law....” We construed section 1008 in this manner to avoid serious doubts about its validity under the California Constitution's separation of powers clause. (Cal. Const., art. III, § 3.) “ ‘[T]he Legislature,’ ” we explained, “ ‘generally may adopt reasonable regulations affecting a court's inherent powers or functions, so long as the legislation does not “defeat” or “materially impair” a court's exercise of its constitutional power or the fulfillment of its constitutional function.’ ” (*Le Francois*, at p. 1103, 29 Cal.Rptr.3d 249, 112 P.3d 636, quoting *Superior Court v. County of Mendocino* (1996) 13 Cal.4th 45, 58–59, 51 Cal.Rptr.2d 837, 913 P.2d 1046.) “One of the core judicial functions that the Legislature may regulate but not usurp is ‘the essential power of the judiciary to resolve “specific controversies” between parties.’ ” (*Le Francois*, at p. 1103, 29 Cal.Rptr.3d 249, 112 P.3d 636, quoting *People v. Bunn* (2002) 27 Cal.4th 1, 15, 115 Cal.Rptr.2d 192, 37 P.3d 380.) To limit a court's ability to correct its own rulings, we reasoned, “ ‘would directly and materially impair and defeat’ ” that “ ‘core power.’ ” (*Le Francois*, at p. 1104, 29 Cal.Rptr.3d 249, 112 P.3d 636.)” (Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 839-840.)

The court finds the motion for reconsideration is untimely. Defendant was served with the ruling on March 20, 2026. Defendant had 10 days in which to file his motion for reconsideration

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of the order granting the summary judgment. Defendant filed his motion well past this time limit. As to the motion to reconsider consolidation, even were the motion timely, which it is not, it is now moot by virtue of the court granting summary judgment.

TENTATIVE RULING #4: THE MOTION FOR RECONSIDERATION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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